

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 13, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Ash, and pursuant to support received by Dr. Rinne and Mr. Collins, agenda item #14 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Ms. Ash. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 23, 2012. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on February 2, 2012. Motion (per Consent Agenda) carried.

Mr. Valdez declared a conflict of interest (business interest in voucher payable to Radio Station KYOY) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Brown. Upon inquiry regarding a voucher payable to Wyoming Network, website hosting fee (Belvoir Ranch website), Jim Elias, Public Works Director, responded the site was implemented by the Planning Department and that department pays the hosting fee. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

Public Hearing to receive input and comments regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council's Business Ready Community, Community Enhancement Grant program, to assist in the completion of the Polk Avenue Greenway segment. Cindy Schneider, Grants Manager, reviewed the 1/4 mile proposed Greenway path to be located along Polk Ave. between Highway 30 and Pershing Blvd. that will connect two sections of the pathway system for continuity and explained provisions of grant application requirements. She advised the project's cost is estimated at \$500,000 and the grant request will be for \$250,000 with a required City match of \$250,000, which will be funded from current 6th penny sales tax. Teresa Moore, Planning Manager, Parks and Recreation Department, displayed a map depicting the proposed pathway segment and, upon inquiry, provided information

regarding potential future pathway extension east of the area. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from P Public District to HR-2 High Density Residential-Developing District for Lot 1, Block 1, The Pointe, Sixth Filing, Cheyenne, Wyoming (located north of and adjacent to Dorothy Lane, west of Powderhouse Road) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the East Pershing Boulevard Sanitary Sewer project from Dunn Avenue to Converse Avenue. Motion (per Consent Agenda) carried. (#5352)

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Street and Alley Road Maintenance Facility Addition Project, Phase I. Motion (per Consent Agenda) carried. (#5353)

[CA] Resolution prioritizing the City of Cheyenne's two applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction Account (Chapter 3) funds. Motion (per Consent Agenda) carried. (#5354)

[CA] Resolution approving an Outside User Sanitary Sewer Services Agreement with Tyson Garrett, owner of Lot 6, Block 1, Lindrom Subdivision, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5355)

Resolution declaring as surplus the City-owned property located at 2100 Pioneer Avenue, Cheyenne, Wyoming, commonly referred to as the City of Cheyenne Board of Public Utilities Administration building, together with all improvements thereon, and authorizing the Director of the Board of Public Utilities and the City's Purchasing Director to proceed with proposed sale of said property pursuant to Wyo. Stat. §15-1-112. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Spiker. Discussion followed regarding whether Cheyenne Housing Authority had expressed an interest in the building; if the property could be transferred to another City entity, and Board of Public Utilities' (BOPU) intended use of property sales revenue toward debt incurred for the new administration building being constructed. During discussion, Mayor Kaysen clarified for the record that Tim Wilson, BOPU Executive Director, acknowledged from the audience that no recent feedback or inquiry from the Housing Authority had been received. Upon inquiry, Dan White, City Attorney, advised it appears the City does have the authority to make a donation to the Cheyenne Housing Authority if the governing body so desired, and that the governing body would have the option of rejecting all bids if it were decided to donate the land after declaring the property as surplus and accepting bids. Further comments followed on the interest in the property expressed by Mike Stanfield, Cheyenne Housing Authority, relative to construction of a new Senior Center involving the site as it is near the current Center. Upon inquiry, Mr. Wilson, clarified the BOPU has been planning on selling the property and using the funds received to help pay down the debt on the new administration building, and advised there has not been a recent

appraisal of the property, commenting on the estimated value of the building several years ago. Upon further inquiry whether loss of property sales revenue to BOPU could affect water and sewer users' rates, Mr. Wilson responded the impact on water rates would not be as significant as an effect on the sewer enterprise fund. Following further discussion, Dr. Rinne moved to postpone for 2 weeks (to Feb. 27, 2012), seconded by Ms. Ash. Comments followed regarding support for protecting citizens' water and sewer user rates, and whether Cheyenne Housing Authority had funding available to remodel the building if it was donated to them. Upon inquiry, Mr. Wilson provided information on his past conversation with Mr. Stanfield, noting it had been quite awhile ago. Motion to postpone carried. Voting "yes" -- all members of the governing body.

[CA] Resolution increasing the level of funding placed into the Solid Waste Management fund for the specific purpose of providing funding to pay for increased professional services costs and solid waste tipping fees, increased recycling costs, and increased costs for the lease/purchase of solid waste equipment -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Country Homes Subdivision, 3rd Filing, a replat of Lot 4, Block 5, Country Homes Subdivision, Laramie County, Wyoming (located east of Cedar Avenue, between Grape and Peach Streets) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for WYODIGS Properties Subdivision, 2nd Filing, a replat of Lots 2 & 4, Block 4, Campstool Addition, Third Filing, Cheyenne, Wyoming (located between Trucker Trail and Industry Court, west of the KOA Campground)-- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Prairie Dog Alley Subdivision, a replat of the north half of Tract 38, Dell Range Addition, Third Filing, Laramie County, Wyoming (located south of and adjacent to Summit Drive, east of Braehill Road) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Rivett Subdivision, a portion of the NE1/4 of Section 1, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located north of and adjacent to West Lincolnway, east of Westland Road)-- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution granting an exception for development of a temporary small wastewater system pursuant to the "201 Agreement" for property described as a tract of land in N1/2N1/2NE1/4NE1/4 of Section 11, Township 13 North, Range 67 West, of the 6th P.M. (a/k/a 4121 West 5th Street), Cheyenne, Laramie County, Wyoming -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution granting an exception for development of a small wastewater system pursuant to the "201 Agreement" for property described as a portion of Tract 1, Lincoln Valley Tracts, Section 36, Township 14 North, Range 66 West, of the 6th P.M. (a/k/a 6509 Tate Road), Cheyenne, Laramie County, Wyoming -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] Resolution authorizing the submission of a Business Ready Community, Community Enhancement Grant application to the Wyoming Business Council on behalf of the Governing Body of the City of Cheyenne for completion of the Polk Avenue Greenway segment -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the Town of Pine Bluffs, Police Department, for law enforcement assistance within the jurisdiction of the Town of Pine Bluffs, Wyoming. Motion (per Consent Agenda) carried. (#5796)

[CA] Agreement for Juvenile Compliance and Diversion Officer Services between Laramie County, the City of Cheyenne, and the Laramie County Community Juvenile Services Joint Powers Board for alternatives to juvenile detention, and improve monitoring of juvenile detention. Motion (per Consent Agenda) carried. (#5797)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and Homeland Security Investigations, Immigration and Customs Enforcement, for reimbursement of certain overtime and other law enforcement expenses related to joint operations. Motion (per Consent Agenda) carried. (#5798)

[CA] Grant Award Agreement between the City of Cheyenne, Police Department, and the Wyoming Office of Homeland Security for Law Enforcement and Terrorism Prevention activities. Motion (per Consent Agenda) carried. (#5799)

[CA] Wyoming Children's Trust Fund Grant Contract between the City of Cheyenne, Youth Alternatives, Special Friends, and Wyoming Department of Family Services, Protective Services Division, to provide Outreach Mentoring Program services -- referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 5566, Juvenile Housing Agreement, between the City of Cheyenne and Southeast Wyoming Juvenile Services, LLC, to extend the agreement term for an additional six months. Motion (per Consent Agenda) carried. (#5566)

[CA] Contract Modification No. 2 to Contract No. 5776 between the City of Cheyenne, Public Works Department, and E/S3 Consultants, Inc. for Energy Project Consulting Services (Energy Development fund) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5377 between the City of Cheyenne, Sanitation Division, and Alpine Waste and Recycling for sorting, processing and marketing of single stream (recyclable) materials -- referred to Finance Committee.

Consideration of Bid #M-6-12 for a contract for the Lions Park Remediation project between

the City of Cheyenne, Parks and Recreation Department, and Scotch Boy, Inc., Cheyenne, WY. Mr. Brown moved to reject all bids, seconded by Mr. Spiker. It was clarified that all bids received exceeded the engineer's estimate of \$150,000 for the project. Upon inquiry, Rick Parish, Parks and Recreation Director, advised available funding is in the amount of \$123,000, explaining some funding has already been used for designers and landscape architects. Mayor Kaysen advised community partners who had expressed an intent in providing funding assistance are still committed to securing \$40,000 toward the project and that \$10,000 has been provided to the City from Cheyenne Light, Fuel and Power. Comments followed regarding the decision to cut down trees in Lions Park for airport flight safety reasons and the need for the City to remediate the area as the public expects. Upon inquiry, Mr. Parish provided information on the scope of work for the project and elements involving redesign of the scope of work due to consultants' estimate of rock quantities needed and the high bids received, resulting in new bid specifications being prepared to advertise for re-bidding to meet the funding amount available. He stated the redesign removes rock walkways and reduces the number of trees to be planted, and reviewed meetings held for public comments involving the original design, advising they did not go back out for public comment on the redesign as it had been planned to timely plant the new trees during the upcoming spring season. He expressed support for moving forward with re-bidding for the redesigned project based upon available funding, stating more trees and amenities could be added in the future when funding may be available, and noted that often times initial project designs have to be scaled back due to costs. Upon query, he confirmed the lowest bid received was over the engineer's estimate by about \$170,000. Discussion included the following topics: Project funding availability; expectation of the public regarding scope of the original project plans; finding money in the budget to provide additional project funding; redesign still including the planting of more trees than the number that had been removed; removal of rock walkways in the redesign; whether a commitment had been made to the public regarding the original design; whether revenue from the property sale to Menard's could be utilized toward the project, and airport runway flight area and safety concerns. During discussion Mr. Parish provided further information on the project, including an explanation that revenue from the sale of property to Menard's is planned to be used toward other projects, referencing the girls softball complex project, Pioneer Park improvements, required ADA compliance needs, and unknown outcome of the pending 6th penny ballot projects. Mayor Kaysen provided information on the intent of the original funding proposal brought forward by the Cheyenne Airport Board and community partners, which was from a remediation standpoint to replace trees. He advised the proposal was a 3 year phasing project tied with the dollars that would be provided from the Airport Board and community partners in a total amount of \$175,000 that included work that would be done for land architectural services and tree and shrub plantings. He stated the project budget amount of \$175,000 was shared during public meetings and that the focus was to revegetate the area with trees, which, upon inquiry, he advised would not grow to a height that would affect airport landing safety standards, and the possibility of an irrigation system. He shared that he had attended a meeting earlier in the day with the community partners who advised they are working toward securing the \$40,000 as previously committed, and that this amount was included in the budgeted amount of \$175,000, and confirmed \$123,000 is the remaining amount of project funds. Mayor Kaysen provided an explanation of why there has been few amenities in this portion of Lions Parks due to safety reasons and regulations involving aircraft traveling over the area. Further discussion followed regarding project funding; support for as well as against the pending motion to reject all bids; removal of rock formations/walkways in the redesign; funding shortages affecting needs in other parks; request for

Parks and Recreation prioritization list of department projects; public input received on the original design vs. redesign of the scope of work for the project and what may constitute a commitment to the public, and project phasing. Motion carried. Voting “yes” -- Mr. Allen, Mr. Brown, Ms. Broyles, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting “no” -- Ms. Ash, Mr. Collins and Mr. Pierson.

[CA] Consideration of Bid #M-9-12 for a contract for the Powers Field Storage Shed project between the City of Cheyenne, Parks and Recreation Department, and Construction Specialists, Inc., Cheyenne, WY. Motion (per Consent Agenda) carried (amount not to exceed \$39,950.00). (#5800)

[CA] Consideration of Bid #R-22-12 for furnishing 3 SUV's for the Fire and Rescue and Planning Departments from Sheridan Motor, Sheridan, WY (2007 - 2010 1% Sales Tax and General Fund). Motion (per Consent Agenda) carried (amount not to exceed \$89,575.75).

[CA] Consideration of Bid #M-19-12 for a contract for the Prairie View Golf Course and Okie Blanchard Sanitary Sewer Main project between the City of Cheyenne, Parks and Recreation Department, and Merrill, Inc. of Cheyenne, WY -- referred to Finance Committee.

Appointments of Anne Picot, JoAnne Weigand and Clayton W. Long to the Mayor’s Council for People with Disabilities. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held February 27, 2012 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Ave., Cheyenne, Wyoming, for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery and winery permits) filed with the City Clerk’s Office.

Announcement was made that due to the Presidents’ Holiday on Monday, February 20, 2012, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O’Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, February 21, 2012 at 11:00 a.m. and Public Services Committee will meet Wednesday, February 22, 2012 at Noon.

Following query under other business by Mayor Kaysen to the public and City Council members and there being no other business, City Attorney Dan White requested the governing body meet in executive session for the purpose of providing governing body members with an update regarding the status of an eminent domain action involving Hollywood Videos property; an appeal to the Wyoming Supreme Court involving the Roundup Heights litigation, and potential acquisition of real property under circumstances where there is a reasonable likelihood that publicity regarding proposed acquisition might affect the purchasing price. Mr. Collins moved to meet in executive session, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other staff as requested by the City Attorney, be present at the executive session, and stated there would be no action taken by the

governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: Executive session convened at 7:03: p.m. following a brief recess.)

The meeting was officially adjourned at 8:00 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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